



OFFICE OF THE POLICE COMMISSIONER
ONE POLICE PLAZA • ROOM 1400

July 27, 2017

Memorandum for: Deputy Commissioner, Trials

Re: **Detective Richard Thomas**
Tax Registry No. 919776
103 Detective Squad
Disciplinary Case No. 2015-12991

The above named member of the service appeared before Assistant Deputy Commissioner David S. Weisel on June 15th, August 11th, and August 30th, 2016, and was charged with the following:

DISCIPLINARY CASE NO. 2015-12991

1. Said Detective Richard Thomas, on or about October 9, 2013, at approximately 2015 hours, while assigned to the 103rd Precinct and on duty, in the vicinity of [REDACTED], Kings County, placed George Boland into a chokehold.
P.G. 203-11 **USE OF FORCE**

In a Memorandum dated November 28, 2016, Assistant Deputy Commissioner David S. Weisel found Detective Thomas Guilty of the sole Specification in Disciplinary Case No. 2015-12991. Having read the Memorandum and analyzed the facts of this matter, I disapprove the findings for Detective Thomas.

Detective Thomas utilized tactics while escorting a prisoner who was attempting to spit on both him and his partner. Detective Thomas' actions are well documented on the video entered into evidence, which showed the efforts Detective Thomas made to protect both himself and his partner from being spit upon. I have determined that Detective Thomas' actions, which did not appear to constitute an actionable chokehold, were reasonable, and necessary, under the totality of the circumstances. Therefore, I deem that Detective Thomas will be found Not Guilty.


James P. O'Neill
Police Commissioner



POLICE DEPARTMENT CITY OF NEW YORK

November 28, 2016

MEMORANDUM FOR: Police Commissioner

Re: Detective Richard Thomas
Tax Registry No. 919776
103 Detective Squad
Disciplinary Case No. 2015-12991

Charges and Specifications:

1. Said Detective Richard Thomas, on or about October 9, 2013, at approximately 2015 hours, while assigned to the 103rd Precinct and on duty, in the vicinity of [REDACTED], Kings County, placed George Boland into a chokehold.
P.G. 203-11 – USE OF FORCE

Appearances:

For the CCRB: Jonathan Fogel, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For Respondent: James Moschella, Esq.
Karasyk & Moschella, LLP
233 Broadway, Suite 2340
New York, NY 10279

Hearing Dates:

June 15, August 11 and August 30, 2016

Decision:

Guilty

Trial Commissioner:

ADCT David S. Weisel

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before the Court on June 15, August 11 and August 30, 2016. Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The CCRB called Elba Rosado and Cameron Love Hewitt (formerly known as [REDACTED] as witnesses. Respondent called Detective Walter Mikowski and testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

After reviewing the evidence presented at the hearing, and assessing the credibility of the witnesses, the Court finds Respondent Guilty of the charged misconduct.

FINDINGS AND ANALYSIS

It was undisputed that on October 9, 2013, at approximately 2000 hours, Respondent and Detective Walter Mikowski, assigned to the 103 Precinct Detective Squad, went to [REDACTED] in Brooklyn to arrest Cameron Love Hewitt, formerly known as [REDACTED] on an aggravated harassment complaint made by his brother.¹ Hewitt allegedly made 44 phone calls or text messages threatening his brother's life. The address in question was a supportive housing center for formerly homeless men known as [REDACTED] Hewitt lived in a room there. When the detectives arrived, they spoke to Hewitt's case manager, Elba Rosado.

It was further undisputed that when the detectives arrived, Hewitt was in a state of semi-undress because he was taking a shower. They nevertheless informed him that he was going to be arrested on the harassment complaint and allowed him to get fully dressed. Hewitt, however, did not want to get dressed in front of them. They replied that they could not let an arrestee out of their sight. Eventually, the detectives arrested Hewitt and took him to the elevator, wearing shorts and a T-shirt.

¹ Hewitt testified that he changed his name legally to avoid contact with his family (T. 91, 105-07).

What happened next was captured on the elevator's video surveillance camera (see CCRB Ex. 1, video; Ex. 2a-d, still photographs taken from video). Hewitt began arguing with the detectives and a fight ensued. Both detectives physically interacted with Hewitt. At one point, Respondent placed his arm in the vicinity of Hewitt's neck. The CCRB asserted that this constituted a prohibited chokehold. Respondent asserted that he did not use a chokehold, but rather was trying to subdue Hewitt in close quarters during a dangerous confrontation. The determination of this case rests both upon an interpretation of the video and the testimony at trial.

Rosado testified that many of her clients had [REDACTED] and that was something she helped them with. Hewitt was one of her clients. The detectives, one of whom was Respondent, met Rosado and Hewitt in the conference room. Rosado agreed that the detectives told Hewitt he could go upstairs and get dressed. According to Rosado, Hewitt nonetheless was irritated that he was getting arrested. In fact, he was "extremely angry and irritated" by the time he got to his room. He was bothered that the detectives followed him in while he was looking for clothes. Hewitt "was really rude and nasty," threatening the detectives with bodily harm like punching them in the face. Eventually the detectives arrested him and removed him from the unit. Hewitt was standing still, but remained "rude and obnoxious" so they placed him on the floor. Rosado testified that the detectives were squeezing Hewitt's arms and he was complaining the handcuffs were too tight. She did not hear the detectives call Hewitt anything derogatory. The detectives led him to the elevator, allowing Rosado to get Hewitt some money and a sweater because it was cool out. Hewitt threatened to spit on the detectives (T. [transcripts of June 15 and Aug. 11, 2016] 16-18, 20-24, 52-57, 61-62, 83-84).

Rosado testified that she, another employee, the detectives, and Hewitt all got into the elevator. Rosado was about two feet from Hewitt. Hewitt still was angry and irate, Rosado said. Hewitt said that he was going to punch the detectives in the face, head-butt and spit on them. In fact, Hewitt motioned to spit but nothing came out. Respondent placed Hewitt's sweater over

Hewitt's face in order to stop the spitting. In response, Hewitt "tries to like wiggle out." Rosado described Hewitt's movements as "just to like probably threaten the detective," but also as trying to free himself. Respondent "came and he put his arms around his neck in order to probably just to subdue him because [REDACTED] . . . looked as if he was coming at him." Respondent came from the side and placed his left arm around Hewitt's neck. Respondent's elbow was at Hewitt's neck and he was holding Hewitt tightly. Rosado and the other employee told Hewitt to calm down. The elevator doors opened and Respondent released his grip seconds afterward. The detectives took Hewitt to their vehicle (T. 25-32, 38-44, 57-59, 62-64, 66-68, 73-74, 76-84).

Rosado testified that she wrote a progress note the next morning concerning the incident. She conceded that she did not write in the note that Hewitt said he could not breathe. Nor did she characterize the detectives as using a chokehold or headlock (T. 69-76).

Hewitt testified that he was 26 years old. He had prior criminal convictions for petit larceny and fare beating. He testified that he originally was involved with [REDACTED] through an LGBT program. At the time of the incident he had lived there for about a year (T. 91-93).

Hewitt agreed that on October 9, 2013, he had just been released from custody on a shoplifting arrest, the same arrest that led to his petit larceny conviction. Respondent was one of the detectives that came to arrest him on his brother's complaint. Hewitt only had been home for maybe 20 minutes. Hewitt asked the detectives if they had proof of what he supposedly did, but they said they had to arrest him nonetheless. He denied that he was agitated at first. Hewitt did not want to get dressed in front of the detectives because he was not wearing underwear after having just gotten out of the shower. He denied having any lotion on his skin. Hewitt asserted that Respondent "started to get loud" and said that he "has to watch me to put some underwear on." Respondent denied Hewitt the opportunity to put underwear on in the bathroom because of the possibility that he could grab a weapon. On direct examination, Hewitt admitted that he was incredulous at this and started arguing. The detectives grabbed and pushed him toward the wall.

On cross, he said that he only got upset when he asked to put on a shirt and the detectives arrested him. He was handcuffed, taken down in the hallway, and then to the elevator. Hewitt admitted that he threatened to spit on the detectives because they were "physically putting their hands on me." He claimed that they punched and choked him inside his apartment and in the hallway, cursed at him and called him a faggot (T. 93-97, 110-27, 130, 133-34).

Inside the elevator, Hewitt testified, he spoke to the detectives but "there's nothing getting resolved." He admitted that he still was irritated because he kept asking why he was being arrested as there was no proof. He was getting angry and loud, and Rosado was trying to calm him down. Hewitt admitted jerking his head back toward one of the detectives. According to Hewitt, Respondent put his hand behind Hewitt's neck and squeezed his throat with his finger. Hewitt said that he was going to spit on Respondent. Respondent used the shirt that Rosado had taken for Hewitt and placed it over Hewitt's face. The detectives pushed Hewitt forward onto the elevator door and Respondent placed him in a chokehold. Hewitt contended that Respondent was squeezing so hard he thought the veins in his head would pop. He told Rosado that he could not breathe (T. 97-99, 101-05, 121, 136-47).

The testimonies of Mikowski and Respondent were largely similar. They testified that the 103 Squad knew based on an investigation card (I-card) that Hewitt had been arrested in Manhattan. When he was released from Rikers Island on October 9, 2013, Mikowski and Respondent went to his address at [REDACTED] Hewitt was agitated when they first spoke. They nevertheless allowed him to go upstairs and get dressed. Hewitt argued with them over the specifics of how and where he was to get changed. When Hewitt became more agitated and started cursing, the detectives handcuffed him. They had difficulty doing so due to the lotion or oil on his skin and Hewitt still was non-compliant. He threatened to spit on and head-butt the detectives, saying, "Just wait until the handcuffs come off." Respondent testified that he also was bothered by this but did not take it personally. Hewitt was taken to the floor outside the

apartment. The detectives denied punching or choking him, or making derogatory remarks. Mikowski nevertheless loosened Hewitt's handcuffs for him (T. 155-69, 181-84, 208-15, 240, 242-44; A. [transcript of Aug. 30, 2016] 222).

According to both detectives, when Hewitt continued his threats inside the elevator and jerked his body back, Mikowski held him and told him to stop. The [REDACTED] employees were trying to calm Hewitt down. Mikowski stood on Hewitt's right. Respondent was to the left. They grabbed Hewitt to stop him from wiggling. Mikowski never heard Hewitt say that he could not breathe, or observed this. He did not see Respondent place Hewitt in a chokehold but conceded that Respondent's arm was in the vicinity of Hewitt's neck. In Mikowski's view, the detectives were trying to control an emotionally disturbed person. Mikowski was bothered, but not angered, by the threats of spitting (T. 169-73, 177-79, 185, 187-94, 196-98, 215, 243-44).

Respondent testified that inside the elevator, Hewitt attempted to spit at him. In response, he covered Hewitt's mouth with a piece of Hewitt's clothing he brought for the prisoner to put on. Respondent denied that he was angry about the spitting or that he had a look of irritation on the video when Hewitt was arguing with Mikowski. Hewitt started to move his head and turn back toward Respondent. Respondent tried to "kind of push around on his shoulder" to keep Hewitt faced toward the elevator door. Noting that Hewitt was slippery due to the lotion, Respondent testified that he put his hand on the back of Hewitt's neck, and as Hewitt turned toward Respondent, "my hand slid around." He immediately removed his hand "and went back to the other side." Respondent asserted that his objective was to keep Hewitt under control and that he did not apply any pressure to his neck. Respondent's arm touched Hewitt's lower cheek and jaw, but the interior of his arm was never against Hewitt's throat. Respondent denied that Hewitt said he could not breathe and noted he was talking the whole time. As the door opened, the detectives regained control of Hewitt and walked him out (T. 215-25, 228-33, 245-46, 250-53, 255-58; A. 217-21).

Respondent's Exhibit A was surveillance video from the hallway. Department Exhibit 1 is the surveillance video from the elevator. At the outset, the detectives, Hewitt, and the two [REDACTED] employees enter. The view of the video is from behind them. Mikowski is holding onto Hewitt's arm. At 20:11:20, Hewitt turns to say something to Mikowski. At :24, Hewitt begins struggling and tries to backward-head-butt Mikowski. At :26, Respondent grabs the back of Hewitt's neck with his hand and covers Hewitt's mouth with an article of clothing. At :34, both detectives are holding Hewitt against the wall of elevator buttons. Respondent is on Hewitt's left and Mikowski on Hewitt's right. Hewitt strikes out with his left arm and shoulder against Respondent. At :37, Respondent, still holding the clothes, puts his left hand over Hewitt's mouth. At :39, Hewitt's head is tilted backward. At :41, Respondent's left arm is visible in the area of Hewitt's neck. It is flush against his jaw. Around :45, Respondent relaxes his arm, and then the elevator door opens on the first floor and the group leaves.

Patrol Guide § 203-11 (p. 1, para. 5) defines a chokehold as including, but not limited to, any pressure to the throat or windpipe, which "may prevent or hinder a person's breathing or reduce intake of air." This definition focuses on the conduct of the officer, not the intent. If the officer exerts pressure on the throat in the manner proscribed, that officer is subject to discipline. The length of time of the hold is not dispositive. *Case No. 2015-13121*, pp. 6-7 (Sept. 20, 2016).

The witnesses gave different descriptions of what the video depicted. Hewitt said that while Respondent's arm was on his neck, he could not breathe. Rosado did not actually testify that Hewitt said he could not breathe, but did say that Respondent was holding him tightly. On cross examination, when asked about her progress note concerning the incident, Rosado admitted that she did not memorialize Hewitt saying anything about not breathing, but testified this did not mean he never said it. Mikowski and Respondent denied that Hewitt said he could not breathe. Respondent denied that his arm added any such pressure to Hewitt's throat or windpipe, or that it prevented or hindered his breathing.

The video surveillance demonstrated by a preponderance of the evidence that Respondent placed his left arm around Hewitt's throat in a chokehold as defined by the Patrol Guide. The context of the crucial moments is that it was undisputed Hewitt threatened to spit at the detectives. At 20:11:36, Hewitt throws off Respondent's grip and turns his head toward him. At :37, Respondent places his left arm and the article of clothing over Hewitt's mouth. They struggle in this position for two to three seconds. At :41, Hewitt's head is looking straight up at the ceiling and Respondent's left arm is around his neck.

Even setting aside the testimony as to the effect this grip had on Hewitt's ability to breathe, it was evident from the video that this hold might have prevented or hindered Hewitt's breathing or reduced his intake of air. There are several additional factors that contribute to this conclusion. First, only about half of the width of Respondent's shirtsleeve is seen against Hewitt's neck. This indicates that the rest of it was not captured by the video because it was closer up against Hewitt's neck. Second, there is a degree of reflection in the polished metal of the elevator wall that shows Respondent's arm directly against Hewitt's neck. It was not, as Respondent testified, only "the lower cheek area and the jaw area." Thus the record established, by a preponderance of the evidence, that Respondent used his left arm to place Hewitt in a chokehold.

The Court is aware of Case No. 2014-11368, decided on July 25, 2016, in which the trial commissioner found that the accused officer used a chokehold but the Police Commissioner found him not guilty. The Police Commissioner noted that the officer "faced extreme danger during his lengthy struggle with an armed individual who was violently resisting arrest." In fact, the evidence from the case was that there was an angry and violent crowd during the arrest, that the officers were only able to get one cuff on the suspect, that the suspect bit an officer and was trying to obtain one of their firearms, and that the struggle lasted over 30 seconds before the chokehold began (Decision, pp. 11-12). The Police Commissioner stated that under the totality

of the circumstances, the officer's actions "were lawful, proper, reasonable, and necessary."

Finally, however, the Police Commissioner warned, "This decision does not sanitize or create a safe space for chokeholds generally but rather carves out an exception in very specific and exceptional circumstances" (Memorandum, p. 2).

Without a doubt, Respondent was dealing with a violent and uncooperative suspect in Hewitt. But the facts do not rise to the "very specific and exceptional circumstances" delineated in the case above. Hewitt was handcuffed and not armed. The critical struggle lasted less than ten seconds. There were two detectives there to maintain control in what was a confined small space. The necessity of blocking any spit coming from Hewitt could have been accomplished without the chokehold. In sum, the exception does not apply and Respondent is found Guilty.

PENALTY RECOMMENDATION

In order to determine an appropriate penalty, Respondent's service record was examined. See Matter of Pell v. Board of Educ., 34 N.Y.2d 222, 240 (1974). Respondent was appointed to the Department on April 15, 1997. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

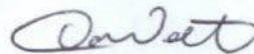
No penalty recommendation was made at trial, but the disciplinary cover sheet for the charges and specifications lists a recommendation of 10 vacation days. On the one hand, this tribunal remains mindful of the serious nature of chokeholds, underscored by the Patrol Guide's emphatic prohibition against their use. The penalty, however, must take into account the accused officer's history as well as the particular circumstances in which the chokehold was used.

The chokehold in this case was used against an individual who was resisting a lawful arrest. Hewitt was twisting and turning his body in an attempt to spit at Respondent. The chokehold lasted no more than three or four seconds. None of these surrounding circumstances justify Respondent's use of a chokehold, but they do provide important context for assessing his conduct.

In *Case No. 2015-13121* (Sept. 20, 2016), an 8-year officer with no prior history forfeited 15 vacation days in a case where the chokehold lasted 16 seconds. It too was an arrest of a violent suspect and there was a hostile crowd gathered. In *Case No. 2014-12925* (Feb. 16, 2016), a 21-year officer with two prior disciplinary cases forfeited 15 vacation days in a chokehold case where, like here, the individual was resisting arrest. In that case too, there were other people physically intervening in the officer's attempt to handcuff the individual.

The CCRB's recommendation of 10 vacation days is well taken. Respondent has been with the Department close to 20 years and has no prior disciplinary history. He has excellent recommendations and several commendations. He used a prohibited chokehold for approximately three to four seconds, but did so while he was struggling to secure a resisting individual that threatened to spit on him. Under the totality of the circumstances in this matter, the tribunal recommends that Respondent forfeit 10 vacation days as an appropriate penalty.

Respectfully submitted,



David S. Weisel
Assistant Deputy Commissioner Trials





POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
DETECTIVE RICHARD THOMAS
TAX REGISTRY NO. 919776
DISCIPLINARY CASE NO. 2015-12991

Respondent was appointed to the Department on April 15, 1997. He received 4.5 overall ratings of "Extremely Competent/Highly Competent" on his last three annual performance evaluations in 2014, 2015 and 2016. He has one medal for Excellent Police Duty and one medal for Meritorious Police Duty. [REDACTED]

Respondent has no prior disciplinary history.

For your consideration.

David S. Weisel
Assistant Deputy Commissioner Trials